

**TWENTY-FOURTH NORTHERN MARIANAS COMMONWEALTH
LEGISLATURE**

IN THE HOUSE OF REPRESENTATIVES

Regular Session, 2026

H. B. 24- 109

A BILL FOR AN ACT

To reduce access to vaporizers and vaporizable products
amongst school-age children in the CNMI.

**BE IT ENACTED BY THE 24TH NORTHERN MARIANAS
COMMONWEALTH LEGISLATURE:**

1 **Section 1. Findings and Purpose.** A recent CNMI Public School System
2 report indicates an alarming increase in the use of vaporizers among school-age
3 children in the CNMI. The increased use of these products among children is a
4 public health concern because vaporizers, such as e-cigarettes, vape pens, and other
5 electronic nicotine delivery systems, and vaporizable products, such as vape juice
6 and e-liquids, pose significant health risks to their users. This legislation aims to
7 reduce access to vaporizers and vaporizable products among school-age children in
8 the CNMI.

9 It is widely known that using vaporizers and vaporizable products is harmful
10 to one's health. According to the Centers for Disease Control (CDC), most
11 vaporizable products contain nicotine, which is highly addictive and is harmful to
12 adolescent brain development. The CDC has stated that 99% of vaporizable

1 products sold in assessed venues in the United States contain nicotine. Further, the
2 CDC has found that some vaporizer product labels do not disclose whether the
3 product contains nicotine, and some vaporizer products marketed as containing 0%
4 nicotine have been found to contain nicotine. Nicotine use in adolescence can harm
5 the parts of the brain that control attention, learning, mood, and impulse control.

6 Additionally, regardless of whether the vaporized product contains tobacco
7 or nicotine, vaporizers and vaporizable products are associated with lung injury.
8 According to a February 2022 study reviewed by the Nemours Institutional Review
9 Board, as of February 2020, there were 2,807 vaping use-associated lung injury
10 cases and deaths reported to the CDC, 15% of whom were under the age of 18. The
11 study indicates that vaporizer use-associated lung injury coincided with a sharp
12 increase in adolescent vaping product use. Vaporizable products have also been
13 found to contain other harmful substances, such as diacetyl, a chemical linked to a
14 serious lung disease—and other cancer-causing chemicals.

15 The increase in use of vaporizers and vaporizable products reported by the
16 CNMI Public School System follows nationwide trends. In 2020, nearly one in four
17 high school students and one in 15 middle school students in the United States
18 reported use of any tobacco product. E-cigarettes were the most commonly used
19 product, accounting for tobacco use in 19.6% of high school students and 4.7% of
20 middle school students.

21 The February 2022 study also found that 82.9% of youth who reported

1 vaporizer use used flavored vaporizable products. The study reported that
2 vaporizers are advertised to target youth, and in 2016, about 7 in 10 middle school
3 and high school students said they had seen e-cigarette advertising.

4 At retail establishments in the CNMI, vaporizers and vaporizable products
5 have been displayed alongside or near other check-out line “impulse purchases,”
6 such as candy and gum. Additionally, vaporizable products are often candy-
7 flavored, which increases their appeal to children. For example, products with
8 names or flavors resembling candy, such as “Bubblegum Blast” or “Fruity
9 Rainbow,” can attract minors to use these products. Product displays influence
10 youth purchase attempts, encourage impulse purchases, and undermine efforts to
11 curtail youth usage.

12 This legislation seeks to reduce access to vaporizers and vaporizable
13 products by requiring them to be kept behind a counter in a secure enclosure and
14 placed so a clerk must assist the customer to complete the transaction.

15 Thus, based on the foregoing, the purpose of this legislation is to reduce
16 access to vaporizers and vaporizable products amongst children by requiring such
17 products be located behind a counter and placed in such a way that a clerk must
18 assist the customer in accessing the product to complete the transaction.

19 **Section 2. Amendment.** Title 4, Division 5, Chapter 12, Article 1 of the
20 Commonwealth Code is hereby amended to add a new subsection (c) to 4 CMC §
21 50138 to read as follows:

1 “(c) Vaporizers and Vaporizable Products Maintained in a Secured
2 Area. Retail establishments shall not allow self-service access to vaporizers
3 and vaporizable products. Vaporizers and vaporizable products shall not be
4 placed at or near a retail establishment’s check-out counter unless such
5 items are securely encased behind the counter. The secured encasement
6 must not be easily visible or accessible to children and must be displayed
7 away from products that are advertised or marketed to children, such as
8 floor-level candy displays. The access and purchase of vaporizers and
9 vaporizable products shall require a store clerk’s assistance at all retail
10 locations.

11 As used within this subsection, “vaporizers” shall mean any
12 electronic devices designed to heat substances, such as dried herbs, oils, or
13 extracts, to a temperature that produces inhalable vapor without
14 combustion. Vaporizers typically consist of a heating element, a chamber
15 for containing the substance to be vaporized, and a mechanism for
16 delivering the vapor to the user.

17 As used within this subsection, “vaporizable products” means
18 substances intended for use with vaporizers, including, but not limited to,
19 oils, concentrates, extracts, and e-liquids. Vaporizable products are

1 specifically formulated or prepared for vaporization and may contain
2 various ingredients, such as nicotine, flavorings, and other chemicals.”

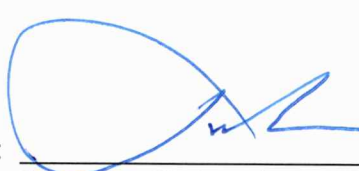
3 **Section 3. Severability.** If any provisions of this Act or the application of
4 any such provision to any person or circumstance should be held invalid by a court
5 of competent jurisdiction, the remainder of this Act or the application of its
6 provisions to persons or circumstances other than those to which it is held invalid
7 shall not be affected thereby.

8 **Section 4. Savings Clause.** This Act and any repealer contained herein
9 shall not be construed as affecting any existing right acquired under contract or
10 acquired under statutes repealed or under any rule, regulation, or order adopted
11 under the statutes. Repealers contained in this Act shall not affect any proceeding
12 instituted under or pursuant to prior law. The enactment of the Act shall not have
13 the effect of terminating, or in any way modifying, any liability, civil or criminal,
14 which shall already be in existence on the date this Act becomes effective.

15 **Section 5. Effective Date.** This Act shall take effect upon its approval by
16 the Governor, or it becoming law without such approval.

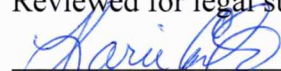
Prefiled: 9/18/2026

Date: 9/18/26

Introduced by: 

Rep. Roy Christopher A. Ada

Reviewed for legal sufficiency by:



House Legal Counsel

Date: 9-18-26